

1 ENGROSSED SENATE
2 BILL NO. 1463

By: Bergstrom of the Senate

3 and

4 Kendrix of the House

5
6 An Act relating to professions and occupations;
7 amending 59 O.S. 2021, Section 1455, as amended by
8 Section 1, Chapter 87, O.S.L. 2023 (59 O.S. Supp.
9 2025, Section 1455), which relates to the Polygraph
10 Examiners Board; extending sunset date; updating
11 statutory language; providing an effective date; and
12 declaring an emergency.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 59 O.S. 2021, Section 1455, as
15 amended by Section 1, Chapter 87, O.S.L. 2023 (59 O.S. Supp. 2025,
16 Section 1455), is amended to read as follows:

17 Section 1455. A. There is hereby re-created, to continue until
18 ~~July 1, 2026~~ July 1, 2031, in accordance with the provisions of the
19 Oklahoma Sunset Law, the Polygraph Examiners Board.

20 B. 1. The persons serving on the Board on June 30, 1988, shall
21 continue to serve the full terms for which they were originally
22 appointed until their successors have been duly appointed and
23 approved with the advice and consent of the Senate. All future
24 Boards shall continue the staggered terms of office established for
the Polygraph Examiners Board prior to July 1, 1988.

1 2. Any actions taken by any state agency on behalf of the
2 Polygraph Examiners Board or in an attempt to enforce the provisions
3 of the Polygraph Examiners Act shall be subject to review by the
4 Board. Any such acts may be rescinded or modified as deemed
5 appropriate by the Board, provided that such action shall not affect
6 any accrued right, ~~or~~ penalty incurred, or proceeding begun between
7 July 1, 1988, and October 12, 1988.

8 3. All funds collected after June 30, 1988, equipment, files,
9 fixtures, furniture, and supplies of the Board which were
10 transferred to the Office of Management and Enterprise Services or
11 State Treasury pursuant to Section 3909 of Title 74 of the Oklahoma
12 Statutes shall be returned to the care and custody of the Board.

13 4. All orders, determinations, rules, regulations, permits,
14 certificates, licenses, contracts, rates, and privileges which have
15 been issued, made, granted, or allowed by the Board and are in
16 effect on June 30, 1988, shall continue in effect according to their
17 terms until further action is taken by the Board or as modified by
18 law.

19 C. The Board shall consist of five (5) members who shall be
20 citizens of the United States and residents of the state for at
21 least two (2) years prior to appointment, all of whom shall have
22 been engaged for a period of two (2) consecutive years as polygraph
23 examiners prior to appointment to the Board, and at the time of
24 appointment are active polygraph examiners. No two Board members

1 may be employed by the same person or agency. No more than two
2 members may be appointed from one congressional district. However,
3 when congressional districts are redrawn, each member appointed
4 prior to July 1 of the year in which such modification becomes
5 effective shall complete the current term of office and appointments
6 made after July 1 of the year in which such modification becomes
7 effective shall be based on the redrawn districts. No appointments
8 may be made after July 1 of the year in which such modification
9 becomes effective if such appointment would result in more than two
10 members serving from the same modified district. At least two
11 members ~~must~~ shall be qualified examiners of a governmental law
12 enforcement agency and at least two members ~~must~~ shall be qualified
13 polygraph examiners in the commercial field. The members shall be
14 appointed by the Governor ~~of the State of Oklahoma~~, with the advice
15 and consent of the Senate, for terms of six (6) years. Any vacancy
16 in an unexpired term shall be filled by appointment of the Governor,
17 with the advice and consent of the Senate, for the unexpired term.
18 Except as authorized by the Polygraph Examiners Act, members of the
19 Board shall be paid no fee, expense reimbursement, wage, or other
20 compensation for their services.

21 D. The vote of a majority of the Board members ~~is~~ shall be
22 sufficient for passage of any business or proposal which comes
23 before the Board. The Board shall elect a chair, ~~vice-chair~~ vice
24 chair, and secretary from among its members.

SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation of the public peace, health, or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 23rd day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives